

Static Terms & Conditions – Credit

(For ONDC Seller Network Participant – Seller App)

Business Partnership Agreement

This Business Partnership Agreement (Agreement) is entered into between Aarna XP Private Limited (hereinafter also referred as Seller Network Participant, Aarna or BPP) that is part of the ONDC Network (Seller App), and Buyer Network Participant or BAP that is part of the ONDC Network (Buyer App). Buyer App and Seller App are hereinafter collectively referred to as the Parties and individually as the Party.

WHEREAS

- A. Buyer App has onboarded the ONDC Network as a Buyer Side Application and agrees to provide Services to Seller App on the terms and conditions set forth herein
- B. B. Seller App have onboarded the ONDC Network as a Seller Side Application and can extend loan/credit under applicable law.
- C. Seller App are desirous of availing following services from the Buyer App (Services)
 - i. Identify potential buyers on the basis of the criteria provided by Seller App
 - ii. Facilitate Buyers to purchase goods or services
- D. The terms and conditions provided hereinafter including the terms and conditions exchanged between the Parties through the ONDC Protocol (Confirmation) will govern the relationship between the Parties

1. Purpose and Scope

These Static Terms and Conditions (“Terms”) govern the participation of the Seller Network Participant (“Seller App”) on the Open Network for Digital Commerce (“ONDC”), and set out the baseline legal, commercial, and operational framework applicable to credit or financing transactions that are enabled or facilitated by the Seller App through the ONDC Network, in accordance with applicable laws, regulatory requirements, and ONDC Network Policies and protocols.

These Terms shall apply uniformly and on a non-discriminatory basis to all Buyer Network Participants (“Buyer Apps”) that interact with the Seller App on the ONDC Network. The Terms constitute the base contractual framework governing such interactions and shall be read together with, and supplemented by, the transaction-level confirmations, records, or commercial terms exchanged electronically between the Buyer App and the Seller App through ONDC protocols (“Confirmations”). Each such Confirmation shall apply only to the specific transaction to which it relates and shall not amend or override these Terms except to the limited extent expressly permitted herein.

2. Definitions

Unless otherwise defined herein, all capitalised terms used in these Terms and Conditions shall have the meanings assigned to them under the ONDC Network Policy, the ONDC Network Participant Agreement, and the applicable ONDC protocol specifications, as amended from time to time. In the event of any inconsistency, the meanings assigned under the ONDC Network Policy and protocol specifications shall prevail to the extent applicable.

For the purposes of these Terms and Conditions, the following terms shall have the meanings set out below:

“Buyer App (BAP)” means a Buyer Network Participant that has been duly onboarded on the ONDC Network and is authorised to facilitate buyer-side discovery, ordering, and transaction initiation in accordance with ONDC protocols and applicable law.

“Seller App (BPP)” means a Seller Network Participant that has been duly onboarded on the ONDC Network and is authorised to offer, enable, or facilitate the sale of goods, services, or credit and financing products on the ONDC Network in accordance with ONDC protocols, Network Policies, and applicable law.

“Buyer” means an end user, consumer, or customer who accesses the ONDC Network through a Buyer App for the purpose of discovering, purchasing, or availing goods, services, or credit or financing offerings.

“Order” means any transaction request, purchase, sale, financing, or credit availed by a Buyer through the ONDC Network, including all related communications, authorisations, and confirmations exchanged in accordance with ONDC protocols.

“Confirmation” means the transaction-level commercial and operational terms exchanged electronically between the Buyer App and the Seller App through ONDC protocols in respect of a specific Order, which shall be binding on the Parties for that transaction.

“Settlement Window” means the time period prescribed under ONDC Network Policies, applicable law, or the relevant Confirmation for the settlement of funds or obligations between network participants arising out of an Order.

3. Role of the Parties

The Seller App participates on the ONDC Network in the capacity of a Seller Network Participant, and its role is limited to enabling, facilitating, or offering credit or financing products and services strictly in accordance with applicable laws, regulatory requirements, and ONDC Network protocols and policies. The Seller App shall not be responsible for Buyer App operations, buyer identification beyond its lawful scope, or buyer-side representations, except as expressly required under applicable law or ONDC policies.

The Buyer App shall operate independently and autonomously on the ONDC Network and shall be solely responsible for identifying and onboarding buyers, facilitating product or credit discovery, obtaining required consents, and transmitting orders or transaction requests through the ONDC Network in accordance with ONDC protocols and applicable laws. The Buyer App shall not represent the Seller App or bind it in any manner except to the limited extent expressly permitted under these Terms and Conditions and ONDC Network rules.

The Parties acknowledge and agree that they are independent network participants, and nothing contained in these Terms and Conditions shall be deemed or construed to create any partnership, joint venture, agency, fiduciary, employer–employee, or principal–agent relationship between them. Neither Party shall have the authority to act for or on behalf of, or to bind, the other Party in any manner whatsoever.

4. Network Neutrality and Non-Discrimination

The Seller App shall provide equal, fair, transparent, and non-discriminatory access to all Buyer Apps that are duly onboarded and compliant with ONDC Network Policies, protocols, and applicable laws. Access to the Seller App’s services, interfaces, and transaction capabilities shall not be denied, restricted, or limited on the basis of the identity of the Buyer App, except where such restriction is required for compliance with applicable law, regulatory directions, or ONDC Network requirements.

The Seller App shall ensure that no Buyer App receives preferential or discriminatory treatment in relation to credit discovery or availability, transaction routing or processing, settlement mechanics or timelines, or access to functionalities, features, integrations, or APIs made available on the ONDC Network. All Buyer Apps shall be subject to uniform technical, commercial, and operational standards, as applicable.

Notwithstanding the foregoing, any differentiation in offerings, eligibility, pricing, credit terms, risk assessment, or transaction outcomes, where applicable, shall be buyer-specific or seller-side, based on objective and pre-defined eligibility criteria such as creditworthiness, risk parameters, product suitability, or regulatory requirements, and shall not be Buyer App-specific. Such differentiation shall be applied in a transparent and consistent manner and in compliance with ONDC policies and applicable law.

5. Transaction-Level Governance

Each credit-related transaction or financing arrangement facilitated or enabled through the ONDC Network shall be governed by these Static Terms and Conditions, read together with the specific confirmation, transaction record, or commercial confirmation exchanged between the Parties in respect of such transaction ("Confirmation"). The Confirmation shall set out the transaction-specific commercial terms, including pricing, tenure, settlement mechanics, and other applicable conditions, and shall form an integral part of the contractual framework governing that transaction.

In the event of any inconsistency or conflict between these Static Terms and Conditions and the terms set out in a Confirmation, the terms of the Confirmation shall prevail solely for the purposes of that specific transaction, provided that such Confirmation is consistent with ONDC Network Policies, protocols, and applicable law. For the avoidance of doubt, such precedence shall not modify or override these Static Terms and Conditions for any other transaction or for general participation on the ONDC Network.

6. Payments, Fees, and Settlements

All fees, charges, commissions (if any), settlement amounts, and applicable settlement windows in relation to transactions conducted through the ONDC Network shall be as specified in the relevant confirmation, transaction record, commercial understanding, or settlement statement issued or made available through the Platform from time to time. Such confirmations shall form an integral part of these Terms and Conditions and shall be binding on the Parties.

All payments, fees, and settlement amounts shall be exclusive of applicable taxes, including goods and services tax or any other levy, cess, or duty imposed by any governmental authority. All payments shall further be subject to statutory deductions, withholdings, or set-offs, as required under applicable law, including tax deduction at source or other regulatory withholdings, and the Network Participant shall be responsible for compliance with its respective tax obligations.

The Seller App reserves the right to withhold, defer, adjust, or set off settlement amounts, in whole or in part, to the extent reasonably necessary in connection with (i) refunds, cancellations, or transaction reversals; (ii) disputes, complaints, or chargebacks raised by buyers, banks, payment service providers, or regulators; or (iii) compliance with applicable laws, court orders, regulatory directions, or ONDC Network Policies. Any such withholding or adjustment shall be limited to the amount reasonably required and shall be released or settled in accordance with applicable timelines once the underlying issue is resolved.

7. Regulatory and Legal Compliance

Each Party represents and warrants that it is duly incorporated, validly existing, and in good standing under the laws of its jurisdiction of incorporation, and that it has full legal power, authority, and capacity to enter into and perform its obligations under these Terms and Conditions. Each Party further confirms that it holds and shall maintain all licences, registrations, approvals, permissions, and authorisations required under applicable law for the conduct of its business and participation in the ONDC Network, and that it shall comply at all times with all applicable laws, rules, regulations, and ONDC Network Policies.

In circumstances where the Seller App facilitates, enables, or is otherwise involved in any credit, lending, or financial services-related transactions through the ONDC Network, the Seller App represents and warrants that such activities shall be conducted in strict compliance with the Reserve Bank of India's Digital Lending Guidelines, master directions, circulars, and advisories, as well as all other applicable banking, financial, consumer protection, and data protection laws, including requirements relating to customer consent, disclosures, grievance redressal, and data usage.

Buyer Apps and other relevant Network Participants shall provide, upon request and within reasonable timelines, transaction-level data, consent artefacts, audit trails, logs, and supporting records as may be required to comply with applicable laws, regulatory directions, court orders, or requests from ONDC or competent authorities, subject to compliance with confidentiality and data protection obligations under applicable law.

8. Representations and Warranties

Each Party represents and warrants to the other that all information, data, and declarations provided in connection with participation on the ONDC Network and the execution of transactions are true, accurate, complete, and not misleading in any material respect, and that such information is provided in good faith and in compliance with applicable laws and ONDC Network Policies.

Each Party further represents and warrants that the execution, performance, and fulfilment of transactions contemplated under these Terms and Conditions do not and shall not violate any applicable law, regulation, court order, contractual obligation, or infringe upon the intellectual property rights, proprietary rights, or other legal rights of any third party.

Each Party confirms that, as of the date of acceptance of these Terms and Conditions and during their continuance, there is no pending or threatened litigation, investigation, or regulatory proceeding against it which would materially and adversely affect its ability to perform its obligations under these Terms and Conditions or participate in the ONDC Network.

Each Party further represents and warrants that all services, obligations, and activities undertaken pursuant to these Terms and Conditions shall be performed in a professional, diligent, and lawful manner, using reasonable skill and care, and in compliance with applicable laws, regulatory requirements, and ONDC Network standards.

9. Audit and Regulatory Access

The Seller App, ONDC, and any competent regulatory or statutory authority having jurisdiction, including the Reserve Bank of India (where applicable), shall have the right, to the extent required under applicable law, regulation, or ONDC Network Policies, to inspect, examine, and verify the books, records, systems, logs, and documents of the Network Participant relating to transactions conducted through the ONDC Network. Such rights shall include the ability to conduct audits, seek explanations, and obtain transaction-level information, data logs, or reports necessary to ensure compliance with legal, regulatory, operational, or network requirements.

Buyer Apps and other relevant Network Participants shall provide reasonable cooperation and access in connection with such audits, inspections, or information requests, including timely sharing of relevant data, records, or system access, within reasonable timelines as may be specified by the Seller App, ONDC, or the applicable regulatory authority, subject to compliance with data protection and confidentiality obligations under applicable law.

10. Data Protection and Privacy

The Network Participant shall collect, process, store, share, and retain personal data strictly in accordance with the Information Technology Act, 2000, applicable rules thereunder, the Digital Personal Data Protection Act, 2023, ONDC Network Policies, and applicable privacy laws.

The Network Participant shall implement reasonable security practices and procedures to protect personal data and transaction data against unauthorised access, loss, misuse, or disclosure. Personal data shall be processed only for lawful purposes connected with ONDC transactions and shall be retained only for such period as required under applicable law or ONDC policies. This clause shall survive termination or expiry of these Terms and Conditions.

11. Confidentiality

Each Party shall keep confidential all non-public, proprietary, or confidential information disclosed by the other Party, whether orally, electronically, or in writing, including but not limited to business information, technical data, pricing, consumer information, and Network-related information ("Confidential Information").

The Receiving Party shall use Confidential Information solely for the purposes of participation in the ONDC Network and shall not disclose such Confidential Information to any third party except:

- (a) as required by applicable law or regulatory authority;
- (b) to its employees, agents, or professional advisors on a need-to-know basis and subject to confidentiality obligations; or
- (c) with prior written consent of the Disclosing Party.

12. Intellectual Property

Each Party shall retain all right, title, and interest in and to its respective intellectual property, including but not limited to trademarks, trade names, logos, service marks, domain names, copyrights, patents, designs, trade secrets, software, business processes, and proprietary technology, whether registered or unregistered. Nothing contained in these Terms and Conditions shall be construed as transferring, assigning, or otherwise granting any ownership rights in one Party's intellectual property to the other Party, except as expressly provided herein.

Subject to compliance with these Terms and Conditions and applicable ONDC Network Policies, each Party grants the other a limited, non-exclusive, non-transferable, revocable, and royalty-free license to use its intellectual property solely to the extent necessary for the purpose of enabling, executing, and fulfilling transactions conducted through the ONDC Network. Such usage rights shall be restricted strictly to the performance of obligations under ONDC transactions and shall not extend to any commercial exploitation, sublicensing, modification, or use beyond the scope expressly permitted under these Terms and Conditions.

13. Indemnity

The Network Participant shall indemnify, defend, and hold harmless ONDC, the Platform, and their respective directors, officers, employees, and agents from and against any claims, losses, damages, penalties, costs, or expenses (including reasonable legal fees) arising out of or in connection with:

- (a) breach of these Terms and Conditions or ONDC Network Policies;
- (b) violation of applicable laws, including consumer protection, data protection, or taxation laws;

- (c) any misrepresentation, misconduct, or negligence of the Network Participant; or
- (d) claims by consumers, sellers, buyers, or third parties attributable to the Network Participant's acts or omissions.

14. Limitation of Liability

To the maximum extent permitted under applicable law, neither Party shall be liable to the other for any indirect, incidental, special, consequential, or punitive damages, including loss of profits, business, or reputation, arising out of or in connection with these Terms and Conditions.

The total aggregate liability of the Platform or ONDC, whether in contract, tort, or otherwise, shall not exceed the fees, if any, paid by the Network Participant during the twelve (12) months preceding the event giving rise to the claim. Nothing in these Terms and Conditions shall limit liability for fraud, wilful misconduct, or liability that cannot be excluded under applicable law.

15. Force Majeure and Network Disruptions

Neither Party shall be liable for any failure or delay in the performance of its obligations under these Terms and Conditions to the extent such failure or delay arises from events beyond its reasonable control, including but not limited to acts of God, natural disasters, pandemics, fires, floods, earthquakes, war, riots, civil disturbances, acts of terrorism, strikes or labour disputes, governmental actions, changes in law, court orders, or failures of utilities or communication networks ("Force Majeure Event"). During the continuance of a Force Majeure Event, the affected Party's performance of the impacted obligations shall be suspended for the duration of such event, provided reasonable efforts are taken to mitigate the effects thereof.

Without prejudice to the foregoing, any disruption, degradation, suspension, or unavailability of services that is directly attributable to the ONDC network, ONDC protocols, or ONDC-controlled infrastructure, and not caused by the Network Participant's acts or omissions, shall constitute a Force Majeure Event for the purposes of these Terms. The affected obligations of the Network Participant or the Platform, as applicable, shall stand excused for the period during which such disruption continues, and performance shall resume within a reasonable time after restoration of normal ONDC network operations.

16. Governing Law and Dispute Resolution

These Terms and Conditions shall be governed by and construed in accordance with the laws of **India**, without regard to conflict of law principles.

17. Amendments and Versioning

These Terms and Conditions may be amended, modified, or updated from time to time in order to reflect changes in the ONDC network protocols, technical specifications, operating guidelines, or policies, as well as to ensure continued compliance with applicable laws, statutory requirements, regulatory directions, or governmental notifications. Such updates may also be necessitated to address operational, security, or risk-management requirements arising from participation in the ONDC Network.

Any updated or revised version of these Terms and Conditions shall be published or made available to the Network Participant prior to its effective date, through the Platform, website, dashboard, or such other mode of communication as may be determined. Continued participation in or use of the ONDC Network after the effective date of such updates shall constitute deemed acceptance of the amended Terms and Conditions.

18. Survival

Notwithstanding the termination, suspension, or expiry of these Terms and Conditions for any reason whatsoever, the provisions relating to Confidentiality, Data Protection and Privacy, Indemnity, Limitation of Liability, Governing Law, and any other obligations which by their nature are intended to survive, shall continue to remain in full force and effect.

For and on behalf of Aarna XP Private Limited

Authorized Signatory

Name: Niranjana Boyapati Prasad

Designation: Chief Operating Officer

Date: 19th December 2025